

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S MOTION TO STRIKE PLAINTIFFS’ EXHIBIT 15 AND
ANY FINDING DERIVED THEREFROM; ALTERNATIVELY, TO
RE-OPEN FOR LIMITED CROSS-EXAMINATION AND REBUTTAL; AND
FOR RELATED RELIEF**

Defendant, pro se, moves to strike Plaintiffs’ **Exhibit 15** (hereafter PX-15, the one-page “Toke Profit Allocation Table”) and to preclude any finding based upon it. In the alternative, Defendant requests a narrowly tailored re-opening for cross-examination and rebuttal and a short lodging order requiring Plaintiffs to provide the underlying records the page purports to summarize¹. In support:

¹ **Non-substitution / deadline:** This Motion is filed contemporaneously with, and does not replace, stay, or extend Defendant’s Objections and Counter-Proposed Findings due Friday, August 29, 2025.

I. INTRODUCTION

1. The Court directed evidence-linked proposed findings after trial.

Plaintiffs then served eight “exhibits.” Only PX-1 and PX-17 bear as-admitted stamps; PX-15 (the one-page “Toke Profit Allocation Table”) does not. PX-15 is a party-authored demonstrative that lacks authentication and, if treated as a summary of voluminous records, lacks a qualified sponsor, notice, and availability of the underlying data. It also misstates ownership/timing and contradicts DeepGulf’s admitted receipts. On this record, PX-15 is argument, not evidence, and warrants no weight.

2. **Post-trial surfacing and prejudice.** PX-15 did not appear in pretrial exchanges or prior pleadings. Defendant first learned of it only after trial when the Court requested evidence-linked proposed findings. But for the Court’s post-trial directive, Defendant would not have known PX-15 existed and could not have confronted it. On this record, PX-15 is the quintessential trial-by-ambush demonstrative: unstamped, unauthenticated, unsupported by underlying ledgers/bank advices, and facially inconsistent with admitted receipts.

3. **Attachments for identification only.** Attached as Exhibit A is the Declaration of Marc Moszkowski. Attached as Exhibit B is a true and

correct copy of the single-page document Plaintiffs labeled “Toke Profit Allocation Table” and referred to here as “PX-15,” without any as-admitted stamp. Exhibit B is provided solely to identify the challenged page; Defendant does not concede admissibility or foundation.

II. PROCEDURAL BACKDROP AND PREJUDICE

4. Only PX-1 and PX-17 bear admission stickers. For PX-2, PX-3, PX-9, PX-13, PX-15, PX-16, Plaintiffs have provided no proof of admission (no sticker and no transcript page:line). PX-15 first appeared at or after trial, when Defendant was not present to confront it; Plaintiffs provided no sponsoring witness and no underlying ledgers/banks. The prejudice is incurable absent exclusion or a narrow re-opening focused solely on PX-15’s foundation and accuracy.
5. Plaintiffs had years to disclose any allocation analysis. They repeatedly filed the same materials (PX-1, 2, 3, 9, 13, 16, 17), yet **never** disclosed PX-15 until trial—at a sitting where they knew Defendant would not be present to test it. The timing and the lack of foundation render any reliance on PX-15 improper; exclusion (or, at minimum, a narrow re-opening to test foundation and accuracy) is the only fair cure.

III. GROUNDS FOR EXCLUSION (ANY ONE IS DISPOSITIVE)

A. No Authentication (Fla. Stat. § 90.901).

6. PX-15 bears no “as-admitted” stamp; Plaintiffs have identified no sponsoring witness to establish that it is what they claim. Absent authentication, the page is inadmissible.

B. Not a Compliant Summary (Fla. Stat. § 90.956).

7. If PX-15 is a “summary,” Plaintiffs must present it through a qualified witness with the underlying data made available. Plaintiffs have done neither; no foundation was laid, no tie-outs provided. The page cannot carry findings.

C. Prejudice/Confusion Substantially Outweighs Any Probative Value (Fla. Stat. § 90.403).

8. A slick one-page chart untethered to ledgers/bank advices invites confusion and unfair prejudice—particularly where it contradicts the money trail. Exclusion (or no weight) is proper.

D. Violation of Pretrial Disclosure / “Trial by Ambush” (Binger).

9. Courts exclude evidence sprung for the first time at trial in violation of

pretrial disclosure regimes. The *Binger* factors (surprise, prejudice, ability to cure, bad faith) favor exclusion or a brief re-opening tightly confined to PX-15's foundation and accuracy.

(Authorities: Fla. Stat. §§ 90.901 (authentication), 90.956 (summaries of voluminous writings), 90.403 (prejudice/confusion outweighs probative value); Fla. R. Civ. P. 1.200; Binger v. King Pest Control, 401 So.2d 1310 (Fla. 1981).)

IV. SUBSTANTIVE DEFECTS (SHOWING WHY PX-15 IS MISLEADING EVEN IF NOT EXCLUDED)

10. Three-Way Split Error — the **\$1,304,764.22** pool was divided in two, not three. PX-15 starts from **\$1,304,764.22** and lists three “shareholders” (Favaro, Ximenes, Moszkowski), then divides by three. That is factually wrong. The **\$1,304,764.22** figure is the **combined** distributions paid to **Favaro + Ximenes** (the Timorese founders) after DeepGulf had already received **\$1,318,169.45**. In other words:

- Total project profit/cash-flow: **\$2,622,933.67**

- DeepGulf receipts (for Moszkowski's 33.33% via the invoice formula $50\% \times (\text{markup} - 4\% [\text{withholding tax}])$): **\$1,318,169.45 (50.3%)**
- Founders' combined receipts (Favaro + Ximenes): **\$1,304,764.22 (49.7%)** — this pool is, by definition, two-party, not three-party.
- The **\$345,000** transferred to Moszkowski for taxes was paid out of the founders' already-reduced pool; it was not an additional DeepGulf entitlement and cannot be re-characterized as DeepGulf's profit.

Result: PX-15's three-way division is a **category mistake**. It double-counts Moszkowski's share (already paid to DeepGulf) and wrongly re-opens the founders' two-party pool as if Moszkowski still participated in it.

Requested disposition: Strike any finding that divides \$1,304,764.22 among three "shareholders" or that re-characterizes the founders' \$345,000 payment as DeepGulf's profit. Any allocation must (i) recognize **\$1,304,764.22** as the two-party founders' pool, (ii)

keep DeepGulf's **\$1,318,169.45** separate, and (iii) be reconciled to admitted ledgers/banks and the invoice formula.

11. Ownership and timing are wrong. PX-15 assumes DeepGulf acquired Favaro's shares and treats DeepGulf as entitled to all projects profits. The paperwork shows a Favaro → Ximenes transfer. There was no Favaro → DeepGulf transfer, and any later ownership cannot retro-allocate earlier distributions.

12. False Transferee & Period-Correct Entitlement. PX-15 asserts profits paid to Favaro should have been received by DeepGulf and that DeepGulf acquired his shares. The recorded sequence is the opposite:

- **08/12/2010** — Favaro → Ximenes. Favaro sold his Hali and Vogue stakes to Ximenes (thus, Favaro's distributions through Hali—≥ \$300,000—were proper pre-transfer receipts).
- **10/27/2010** — Ximenes → DeepGulf (33.33%). Period-correct distributions to DeepGulf on this block thereafter were \$64,000.
- **12/13/2012** — Remaining 33.33% Ximenes → DeepGulf. Post-acquisition distributions on the second block were \$49,975.00.

PX-15 retro-allocates pre-transfer profits and misidentifies the transferee (“DeepGulf acquired his [Favaro’s] shares”). The correct chain is Favaro → Ximenes → DeepGulf (in two steps). Any allocation must be period-correct and tied to admitted bank/ledger exhibits.

Requested disposition (targeted):

- a. **Strike** any finding that reallocates pre-10/27/2010 (or pre-12/13/2012) profits to DeepGulf.
- b. **Conform** any DeepGulf allocation to the period-correct amounts (\$64,000 and \$49,975.00), only if supported by admitted bank/ledger exhibits.

13. Receipts are omitted. PX-15 alleges a diversion of **\$524,842.81** yet **ignores** DeepGulf’s receipts of **\$1,318,169.45** plus **\$125,000** Defendant credited to DeepGulf for payroll—\$1,443,169.45 total—i.e., \$918,326.64 more than the amount claimed withheld. (*Arithmetic:* $1,443,169.45 - 524,842.81 = 918,326.64$.)

14. Invoice formula ties payments to profit. Invoices from DeepGulf to Toke compute consideration as “50% × (markup – 4% [withholding tax]) of BS[xxxxx] invoice amount)”. Though labeled “Project

Management Services,” the invoices are profit-linked allocations, and were all paid. PX-17 (admitted) omits these receipts and cannot support a contrary finding without reconciliation to the underlying money trail. Because PX-17 is admitted but incomplete, the Court should decline any finding derived from PX-17 unless Plaintiffs first reconcile it to the admitted bank/ledger totals and correct for period-specific ownership.

15. Withholding tax. The 4% in the invoice formula is the Timor-Leste withholding tax; the invoices allocate DeepGulf a fixed 50% of markup net of the 4% withholding tax, i.e., a profit-linked allocation—not a discretionary fee.

16. PX-15 Mislabels the Base (“available for distribution”) and Double-Counts DeepGulf’s Receipts. PX-15 states: “Toke Profits from all 3 projects available for distribution = \$1,304,764.22.” That figure is simply the residual after subtracting DeepGulf’s receipts (\$2,622,933.67 total – \$1,318,169.45 to DeepGulf = \$1,304,764.22). PX-15 then claims 66.67% of that residual—\$869,842.81—on top of the \$1,318,169.45 already received, implying DeepGulf’s “entitlement” is \$2,188,012.26, i.e., = 83.42% of the entire \$2,622,933.67. That is circular and double-counts DeepGulf’s receipts.

- **Correct base:** Total profit/cash-flow from the three projects is \$2,622,933.67.
- **What PX-15 does:** Treats (Total – DeepGulf receipts) as “profit,” then awards 2/3 of that reduced base to DeepGulf, after its receipts have already been counted.
- **Share check:** One-third of \$2,622,933.67 is \$874,311.22. DeepGulf already received \$1,318,169.45 (+\$443,858.23 over a one-third share).

Requested disposition: The Court should strike or assign no weight to any PX-15 finding that (i) defines “profit” as residual after DeepGulf’s receipts and (ii) re-awards a percentage of that residual to DeepGulf. Any allocation must start from the actual total and be period-correct and reconciled to admitted ledgers/banks and the invoice formula ($50\% \times (\text{markup} - 4\% [\text{withholding tax}] \text{ on the BS[xxxxx] invoice amount})$)).

Computation (for the Court’s convenience): Total: \$2,622,933.67; DeepGulf receipts from Toke: \$1,318,169.45; “residual”: \$1,304,764.22; 2/3 of residual: \$869,842.81; DeepGulf implied “entitlement”: $\$1,318,169.45 + \$869,842.81 = \$2,188,012.26 \rightarrow$

$\$2,188,012.26 \div \$2,622,933.67 = 83.42\%$ — contrary to the period-correct equity share (33.33%) and despite DeepGulf having already received 50.26% under the invoice allocations.

Requested disposition: Strike any PX-15 finding that awards 66.67% of a residual base to DeepGulf absent an admitted allocation agreement and period-correct ownership schedule; later ownership does not retro-allocate prior profits.

17. Netting/Offsets Ignored. Even if PX-15 were considered, it fails to account for offsets—including no less than \$546,000.00 in accrued salary and reimbursable advances then owing to Defendant for work performed in 2005–2007. A one-page chart that omits material offsets is misleading and invites confusion and unfair prejudice, reinforcing exclusion or no-weight under § 90.403. Any monetary finding must be net of amounts then due, with admitted ledger/bank tie-outs.

V. REQUESTED RELIEF

18. Strike / No-Weight. Strike PX-15 and decline to adopt any finding derived from it.

19. Lodging (3 business days). Within 3 business days, require Plaintiffs to lodge: (a) the as-admitted copy of PX-15 (sticker + transcript page:line), (b) the underlying ledgers/bank advices for each number on PX-15, and (c) identification of a qualified sponsoring witness for any § 90.956 summary. Absent full compliance, the Court will give no weight to PX-15.

20. Alternative Narrow Re-Opening. If preferred, re-open solely to test PX-15's foundation and accuracy (sponsor; underlying accounting/banks) and to allow Defendant's invoice/ledger receipts and **period-correct** ownership proof.

21. Vacatur Safeguard & Netting Rule. To the extent any monetary finding rests on PX-15, vacate/decline it unless and until Plaintiffs meet the foregoing foundation and reconciliation requirements. Any monetary finding must be net of offsets then owed to Defendant (including \$546,000.00 in accrued salary/reimbursements), supported by admitted ledger/bank pages; absent that reconciliation, no diversion/damages finding enters.

VI. CERTIFICATE OF GOOD-FAITH CONFERENCE

Defendant conferred via email with Plaintiffs' counsel regarding the

foundation and admission status of Exhibits. Counsel has not provided an as-admitted copy with page:line, a sponsoring witness, or underlying ledgers/banks.

VII. WHEREFORE

Defendant respectfully requests that the Court

- (1)** Strike Plaintiffs' PX-15 and preclude any finding derived therefrom; or
- (2)** Alternatively, re-open the record solely to test PX-15's foundation and accuracy (sponsoring witness; underlying ledgers/banks) and to allow Defendant's rebuttal ledger/invoice evidence and period-correct ownership proof; and
- (3)** Within 3 business days, require Plaintiffs to lodge (a) the as-admitted copy of PX-15 (exhibit sticker and transcript page:line of admission), (b) the underlying ledgers/bank advices supporting each figure on PX-15, and (c) identification of a qualified sponsoring witness if PX-15 is offered as a summary; absent full compliance, PX-15 shall be given no weight; and
- (4)** Clarify deadlines: this Order does not stay or extend existing deadlines; Defendant's Objections/Counter-Findings remain due August 29, 2025; and
- (5)** Grant such other and further relief as is just, including costs/sanctions if warranted.

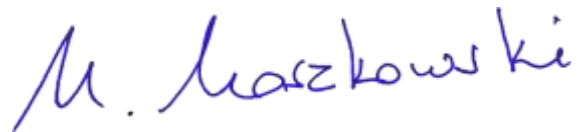
Respectfully submitted this 28th day of August, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 28th day of August, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

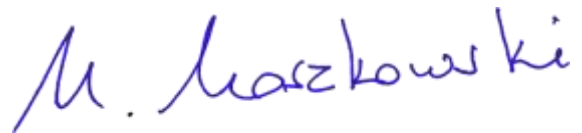




EXHIBIT A — Declaration of Marc Moszkowski

1. I did not receive PX-15 in pretrial exchanges or earlier filings.
2. The first time I saw PX-15 was after trial, when the Court requested evidence-citations in proposed findings.
3. The copy provided to me bears no as-admitted sticker; I have not been given any transcript page:line reflecting admission.
4. Had PX-15 been disclosed, I would have presented the invoices (stating "50% × (markup – 4% [withholding tax] of BS[xxxxx] invoice amount)") and ledgers/bank records showing \$1,318,169.45 paid to DeepGulf, plus \$125,000 I credited to DeepGulf for payroll (total \$1,443,169.45), which contradict the page's "diversion" figure by **\$918,326.64**.
5. Attached as **Exhibit B** is a true and correct copy of the page Plaintiffs labelled 'Toke Profit Allocation Table,' which was provided to me without any as-admitted exhibit stamp. I attach it only for identification and do not concede admissibility.

I declare under penalty of perjury that the foregoing is true and correct.

August 28, 2025

Marc Moszkowski

A handwritten signature in blue ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.



Exhibit B — Copy of Plaintiffs’ purported “Exhibit 15” (for identification only)

Note: Plaintiffs’ copy bore no as-admitted exhibit sticker. Any “Exhibit B” label is Defendant’s filing label only. Attachment is for identification only; admissibility is not conceded.

Toke Profit Allocation Table

Toke Profits from all 3 projects available for distribution		1,304,764.22	
Profit should have been allocated:			
Hali Group/Vincente Ximenez		434,921.41	DeepGulf share of Toke Profit diverted to other (not Moszkowski) shareholders
Vogue Lda/Gino Favaro and DeepGulf		434,921.41	
MMoszkowski to DeepGulf		434,921.41	
Profit diverted to MMoszkowski to pay his inheritance taxes should have been DeepGulf profit because MM held shares FBO DeepGulf		345,000.00	MM FBO DG share of profit diverted to other shareholders
		524,842.81	Total diverted to other shareholders

Gino was kicked out of Toke by MM by Aug 2008 and had no dealing with Toke thereafter and no profits were distributed to him directly nor through his entity. DeepGulf acquired his shares.